

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX****KHAMIN TODD,**

Plaintiff,

-against-

**THE CITY OF NEW YORK;
CAPTAIN JOE A. PULGARIAN;
JOHN/JANE DOE NOS. 1-10,**

Defendants.

Index No.: _____

SUMMONSPlaintiff designates Bronx County as
the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint. The basis of venue is the location where the claims arose.

Dated: New York, New York
January 19, 2021**Rickner PLLC**

By:


Rob Rickner14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

CAPTAIN JOE A. PULGARIAN

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX****KHAMIN TODD,**

Plaintiff,

-against-

**THE CITY OF NEW YORK;
CAPTAIN JOE A. PULGARIAN;
JOHN/JANE DOE NOS. 1-10,**

Defendants.

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COMPLAINT

Plaintiff Khamin Todd, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges upon information, belief, and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department ("NYPD"), who violated Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 for violations of Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States, and pursuant to state and local law for violations of Plaintiff's rights under Article 1, Section 12 of the Constitution of the State of New York, the common laws of New York, and the administrative code of the City of New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.
4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 202100078104.
5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h on December 17, 2021.
6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.
7. Venue is properly laid in the Supreme Court of the State of New York, County of the Bronx, because the Plaintiff's claims arose in the County of the Bronx.
8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff Khamin Todd ("Plaintiff") is, and was at all times relevant to this action, a resident of Westchester County in the State of New York.
10. Defendant CITY OF NEW YORK ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.
11. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.
12. Defendant CAPTAIN JOE A. PULGARIAN (Shield No. Unknown) (hereinafter

“Pulgarian”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

13. Captain Pulgarian is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

14. Captain Pulgarian is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

15. Defendant John/Jane Does Nos. 1–10 (hereinafter “Doe Defendants”) were at all relevant times described herein NYPD officers, employed by the City of New York. At all relevant times described herein the Does Defendants were acting under color of New York state law, and acting in the course and scope of the duties attendant to that employment. The Doe Defendants are sued in their individual capacities.

16. The true names and shield numbers of the Doe Defendants are not currently known to the Plaintiff. However, the Doe Defendants are employees or agents of the NYPD. Accordingly, they are entitled to representation in this action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice that (a) Plaintiff intends to name said officers as defendants in an amended pleading, once the true names and shield numbers are known; and (b) the Law Department should immediately begin preparing the Doe Defendants’ defenses.

17. Captain Pulgarian and the Doe Defendants are collectively referred to herein as the “Individual Defendants.”

18. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers

of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

19. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

20. On October 21, 2020, Plaintiff was lawfully in the vicinity of 4700 White Plains Road in the Bronx, New York, when he was approached by multiple NYPD officers.

21. The Individual Defendants assaulted and battered Plaintiff, and used excessive force in arresting Plaintiff. The Individual Defendants punched, kicked, elbowed, unreasonably restrained, and tased Plaintiff multiple times while he was face down on the ground with his hands behind his back. The encounter lasted several minutes before Plaintiff was placed onto a stretcher and taken to the hospital.

22. At least 29 officers present on the scene activated their body cameras during the incident, many of which captured the use of excessive force on Plaintiff, as well as the Individual Defendants' efforts to detain persons recording the incident.

THE INDIVIDUAL OFFICERS' HISTORY OF MISCONDUCT

23. The named Individual Defendants have a history of violating people's civil rights while employed by the NYPD, yet the City has failed to meaningfully train or intervene in this

misconduct, or discipline officers for violating the rights of those they are tasked to protect.

24. For example, Captain Pulgarian has been named as a defendant in at least two civil rights actions, and has had at least nine civilian complaints made against him to the Civilian Complaint Review Board (“CCRB”), including allegations of unlawful physical force. In one civil action, Pulgarian was accused of stopping a civilian without probable cause and assaulting him, necessitating emergency medical care.¹

25. In another suit, which settled for \$75,000, Pulgarian was accused of falsely arresting three individuals and conspiring to fabricate evidence against them, which led to false charges.² The superseding information in the case, which included false statements of material fact, was sworn to by Pulgarian. During the underlying criminal action, which resulted in an acquittal, Pulgarian testified that he was instructed by his employer to arrest “about eight” people a month.

26. Despite these repeated incidents of misconduct, the City of New York of New York has failed to meaningfully discipline or properly supervise the Individual Officers, ratifying and condoning their conduct by refusing to discipline them, and, in Pulgarian’s case, continuing to promote him in the wake of these civil rights violations.

THE INJURIES TO PLAINTIFF

27. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering and injuries to his person that Plaintiff was forced to endure as a consequence of the Individual Defendants’ decidedly wrongful actions.

28. The Individual Defendants’ actions were wanton, reckless, and malicious, as well as

¹ See *Brown v. Pulgarian*, Case No. 17-cv-01677 (S.D.N.Y. 2017).

² See *Dabreo et al. v. City of New York et al.*, Case No. 11-cv-01473 (E.D.N.Y. 2011).

in blatant disregard of Plaintiff's civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City under the doctrine of *respondeat superior* for all state law claims.

29. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

30. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

31. The Individual Defendants, and specifically Captain Pulgarian, used repeated, unlawful, and vicious physical force against Plaintiff.

32. Plaintiff's seizure and detention at the hands of the Individual Defendants was made in the absence of probable cause that she committed any crime or violation. The unwanted physical contact was therefore unlawful and unconstitutional.

33. Even assuming, *arguendo*, that Plaintiff's arrest was lawful, the Individual Defendants, and especially Captain Pulgarian, engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to Plaintiff.

34. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

35. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, and the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
ASSAULT AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

36. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

37. The Individual Defendants intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act, which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in Plaintiff.

38. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

39. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

40. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**THIRD CLAIM FOR RELIEF:
BATTERY AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

42. The Individual Defendants intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff and handcuffed him without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

43. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

44. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

45. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**FOURTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING
AGAINST THE CITY OF NEW YORK**

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

47. The City of New York negligently hired, screened, retained, supervised, and trained the Individual Defendants.

48. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

49. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

50. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

51. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of

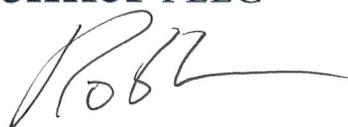
the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
January 19, 2022

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1) I am the attorney of record for the Plaintiff .

2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.

3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
January 19, 2022

Rickner PLLC

By:



Rob Rickner

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New York, New York 10005
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Attorney for Plaintiff